

Smt Padmapriya @ Priya S vs Sri Vijayachandran D on 12 September, 2023

Author: G.Narendar

Bench: G.Narendar

- 1 -

NC: 2023:KHC:32977-DB
MFA No.5066 of 2020

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
DATED THIS THE 12TH DAY OF SEPTEMBER, 2023
PRESENT

THE HON'BLE MR. JUSTICE G.NARENDAR

AND

THE HON'BLE MR. JUSTICE VIJAYKUMAR A. PATIL

MISCELLANEOUS FIRST APPEAL NO.5066 OF 2020 (FC)
BETWEEN:

1. SMT. PADMAPRIYA @ PRIYA .S
W/O SRI. VIJAYACHANDRAN
AGED 36 YEARS

NO. 2, C/O SELVARAJ
ANUBHAVANAGAR, 2ND CROSS
NAGARABHAVAI MAIN ROAD
BANGALORE 72.

...APPELLANT

(BY SRI. VISWANATH SABARAD, ADV.,)
AND:

1. SRI. VIJAYACHANDRAN .D
S/O DURGANANTHAN
AGED 40 YEARS
NO.304, Q-BLOCK
ALPINE ECO APARTMENTS
OUTER RING ROAD
BANGALORE 37.

...RESPONDENT

(BY SMT. SRIDEVI T.R. ADV.,)

THIS MFA IS FILED U/S. 19(1) OF THE HINDU MARRIAGE
ACT, AGAINST THE JUDGMENT AND DECREE DATED.
26.05.2020, PASSED IN MC. NO.4084/2014, ON THE FILE OF

Digitally
signed by
RUPA V
Location:
HIGH
COURT OF
KARNATAKA

THE VI-ADDITIONAL PRINCIPAL JUDGE, FAMILY COURT,
- 2 -

NC: 2023:KHC:32977-DB
MFA No.5066 of 2020

BENGALURU, PARTLY ALLOWING THE PETITION FILED
U/SEC.13(1) (ia) AND (ib) OF THE HINDU MARRIAGE ACT.

THIS APPEAL, COMING ON FOR ORDERS, THIS DAY,
VIJAYKUMAR A. PATIL J., DELIVERED THE FOLLOWING:

JUDGMENT

This appeal is filed under Section 19(1) of the Family Courts Act, 1984 against the judgment dated 26.05.2020 passed in M.C.No.4084/2014 by the VI Addl. Principal Judge, Family Court, Bangalore, (hereinafter referred to as 'the Family Court') by which the petition filed by the respondent - husband under Section 13(1)(ia)(ib) of the Hindu Marriage Act, 1955 seeking dissolution of marriage on the ground of the cruelty and desertion was allowed.

2. Learned counsel for the appellant and the learned counsel for the respondent submit that at the intervention of elders and well-wishers, the appellant-wife and the respondent-husband, in the conciliation, have arrived at NC: 2023:KHC:32977-DB an amicable settlement of the dispute and accordingly they have filed a joint memo.

3. The terms of the joint memo read as under:

"1. The Appellant has agreed to confirm the judgment and decree dated 26.05.2020 passed in M.C.No.4084/2014 on the file of the VI Addl. Prl. Judge, Family court by receiving for amount of Rs.18,00,000/- (Rupees Eighteen Lakhs only) as permanent alimony and out of that amount of Rs.10,00,000/- (Rupees Ten Lakhs only) as maintenance towards her child and for Rs.8,00,000/- (Eight Lakh only) as a permanent alimony to the appellant.

2. The appellant has acknowledged of having deposited the interim maintenance amount of Rs.27,000/- before Hon'ble VI Addl. Principal Family Judge, at Bengaluru in M.C.No.4084/2014 on 7.12.2018 in R.O. No.506/2018 before Hon'ble VI Addl. Principal Family Court Bengaluru.

3. In terms of settlement, today the respondent issued a Demand Draft drawn on NC: 2023:KHC:32977-DB ICICI Bank, Chikmagalur Branch, bearing No.501590 dated 07.09.2023 for amount of Rs.1,00,000/- and remaining balance of Rs.6,73,000/- (Six Lakh Seventy Three Thousand only) will be payable within 6 months from date

of order of this Hon'ble Court.

4. In terms of settlement, today the respondent producing the Demand Draft drawn on ICICI Bank, Chikmagaluru Branch, bearing No.501591 dated 07.09.2023 for amount of Rs.2,50,000/- (Two Lakh Fifty Thousand Only) in favour of The Registrar General, High Court of Karnataka, Bengaluru as maintenance of child and Permit this respondent to deposit the same before this Hon'ble Court. And the remaining balance of Rs.7,50,000/- (Seven Lakh Fifty Thousand only) will be permitted to deposit before this Hon'ble Court within 6 months from date of order this Hon'ble Court.

5. The permanent alimony Rs.18,00,000/- (Rupees Eighteen Lakh only) i.e., the permanent alimony of 8,00,000/- of appellant and maintenance of child of 10,00,000/- also in terms of compliance of order dated 31.05.2023 having acknowledgment for having NC: 2023:KHC:32977-DB paid arrears of maintenance and litigation expenses of Rs.10,000/- and also the family court, by order dated 16.03.2018, had directed payment of amount of Rs.5,000/- as maintenance to the appellant and Rs.4,000/- to the child, it is further submitted that during the pendency of appeal as well the respondent was directed to pay the maintenance to the appellant at the aforesaid rate to the appellant, and to the child.

6. The appellant and on behalf of the child the appellant voluntarily agreed to cease to keep or calm or give up the any right over either respondent nor respondent family as claiming coparcenary right over any property of respondent."

4. We have gone through the terms of the joint memo, they are not opposed to public policy nor opposed to law. The learned counsels for the parties respectively identify the appellant-wife and the respondent-husband, who are present before the Court. The parties to the proceedings express that they have entered the NC: 2023:KHC:32977-DB compromise on their own volition, they have understood the terms of the compromise and they have affixed their signature.

The joint memo is placed on record. The appeal is disposed of in terms of the joint memo.

Registry is directed to draw the decree accordingly. No order as to costs.

Sd/-

JUDGE Sd/-

JUDGE RV